

Terms of Service

CoolPeople — civic engagement, prospective-candidacy (“WouldBe”), and debate platform

DRAFT FOR LEGAL REVIEW — NOT YET EFFECTIVE. This document is a platform-tailored draft prepared as a starting point. It is **not legal advice** and has not been reviewed by licensed counsel. Because CoolPeople touches federal and state election-finance law (FEC), money movement, taxation, minors, and political data, this draft **must be reviewed and approved by a qualified attorney** in your operating jurisdiction before it is presented to users for acceptance. Bracketed red items are placeholders to complete.

Operator: [Legal Entity Name, Inc.] (“CoolPeople,” “we,” “us,” “our”) • **Service:** the CoolPeople website, applications, and APIs (the “Service”) • **Version:** Draft v0.1 • **Draft date:** June 17, 2026 • **Effective date:** [on publication] • **Governing law:** [State/Country]

1. Acceptance of These Terms

These Terms of Service (“Terms”) form a binding agreement between you and CoolPeople governing your access to and use of the Service. By creating an account, clicking to accept, or otherwise using the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms and by our **Privacy Policy**, which is incorporated by reference. If you do not agree, do not use the Service.

Your acceptance is recorded electronically, including the date, time, the version of these Terms shown to you, and technical metadata such as your IP address and device/browser identifier, as further described in the Privacy Policy. You agree that this electronic record constitutes your signature and is admissible as evidence of your agreement.

2. Eligibility & Age Requirements

- You must be at least **18 years old** to register a general account, create a WouldBe campaign, make a pledge, tip, subscribe, or enter a paid debate.
- Certain debate features may be made available to minors aged [13–17] **only** with verified parental or guardian consent and subject to additional restrictions. Where minors are permitted, age-gated and feature-restricted controls apply automatically.
- Functions that implicate federal election law (e.g., pledging, candidate fundraising activity) require you to be of legal age and to truthfully complete the applicable eligibility attestations described in Section 5.
- You must not be barred from using the Service under any applicable law or sanctions program, and you must provide accurate registration information.

3. Key Definitions

WouldBe	A prospective-candidacy campaign page created by a user exploring or pursuing public office, with a stated fundraising goal (bounded between \$5,000 and \$1,000,000).
Pledge	A non-binding, non-transacting promise by a user to contribute a stated amount to a WouldBe <i>if and when</i> it reaches its goal. A Pledge is not a payment, donation, or contribution and moves no money on the Service (see Section 6).
Candidate / Committee	A user pursuing office and, where required, the candidate's registered political committee filed with the appropriate filing authority (e.g., the FEC or a state authority).
Debate	A sponsored or platform-run competitive event with contestants, judging criteria, voting, and (where applicable) a prize pool.
Sponsor / Contestant	A user or organization that funds/hosts a Debate; a user who enters a Debate.
Content	Any text, video, image, comment, or other material you submit to the Service.

4. Nature of the Service — What CoolPeople Is and Is Not

CoolPeople is a civic-engagement and information platform. **CoolPeople is not a political committee, candidate, donor, contribution processor, escrow, or financial institution, and does not solicit, receive, hold, direct, or transmit political contributions.**

- **Pledges never transact on the Service.** A Pledge is a non-binding expression of intent. When a WouldBe reaches a goal or milestone, CoolPeople may notify pledgers and provide a link to the candidate's own external, FEC-registered contribution processor (for example, a third-party donation service). Any actual contribution occurs off-platform, between the contributor and the candidate's processor, subject to that processor's terms and to applicable law.
- Information presented about offices, deadlines, eligibility, jurisdictions, and election rules is **provided for general informational purposes only and is not legal, compliance, financial, tax, or campaign advice.** It may be incomplete or out of date. You are responsible for confirming all requirements with the relevant authority.
- CoolPeople does not endorse, vet for office, or guarantee the qualifications, statements, or legal compliance of any Candidate, WouldBe, Sponsor, or user.

5. Candidate & WouldBe Obligations; Election-Law Compliance

If you create a WouldBe or otherwise use candidate features, you represent, warrant, and agree that:

- You are **solely responsible** for your own compliance with all applicable federal, state, and local election, campaign-finance, disclosure, and tax laws, including any requirement to register a committee, appoint a treasurer, observe contribution limits, and file reports.

- You will truthfully complete required **attestations** (which may include U.S. citizenship or lawful-permanent-resident status, minimum age, use of your own funds, and that you are not a prohibited source such as a foreign national or federal contractor). Attestations are recorded on an append-only basis with technical metadata. **Submitting a false attestation is a violation of these Terms and may violate law.**
- A WouldBe begins in a non-public draft state and may only become active (eligible to receive pledges) after the platform's committee/eligibility gate is satisfied, as the platform may implement it from time to time. The platform's gating is an operational control and **does not constitute legal clearance** of your candidacy.
- Eligibility information displayed for an office (age, citizenship, residency, etc.) is informational only and is **not** a determination that you qualify. Where the platform shows generic guidance, you must confirm requirements with your filing authority.
- You will keep your committee, treasurer, processor link, and related information accurate and current.

6. Pledges

- A Pledge is voluntary, **non-binding, and revocable** until it is acted upon, and may be withdrawn through the Service. It creates no contractual obligation to pay and no debt.
- The Service may apply a default per-user pledge ceiling per campaign (a platform default, not a legal determination of your contribution limit) and may reset that ceiling following a confirmed primary advancement. Displayed legal contribution limits, where shown, are informational and separate from any platform pledge ceiling.
- CoolPeople is not responsible for whether any pledger ultimately contributes, for the conduct of any external processor, or for any contribution made off-platform.

7. Debates, Sponsors, Contestants, Judging & Prizes

- Debates may involve entry fees, sponsor fees, prize pools, judging criteria, and audience voting. Specific economics, rules, eligibility, and excluded jurisdictions are disclosed per Debate and are incorporated into these Terms for that Debate.
- Sponsors are responsible for the lawfulness of the contests they fund, including any sweepstakes/contest registration, bonding, age, and state-eligibility requirements. CoolPeople may require sponsor verification.
- Prizes, where offered, are awarded per the published rules. Winners may be required to complete identity, tax (e.g., W-9/W-8), and payout-onboarding steps before any disbursement. **No purchase is necessary where a free method of entry is offered; such method, if any, is stated in the Debate rules.**
- Judging and voting results are administered under the published criteria; CoolPeople may void results affected by fraud, coordinated manipulation, or rule violations.

8. Payments, Fees, Taxes & Refunds

CoolPeople never touches, holds, or processes campaign contributions. Campaign pledges are promises only and are never charged on the Service (Section 6). The Service handles real money only in the limited ways described below, all processed through our third-party payment processor ([Stripe](#)).

How CoolPeople earns revenue

- **Tips to the platform.** Users may optionally tip CoolPeople. Tips are paid to the platform and are platform revenue.
- **Debate poster (sponsor) flat fee.** A user or organization that posts/hosts a Debate pays CoolPeople a fixed flat fee to do so. This fee is platform revenue.
- **Per-transaction markup on the debate side.** For debate-related transactions (such as contestant entry), CoolPeople adds a small per-transaction amount (a processing/service markup) on top of the underlying price. That markup is platform revenue; the displayed price at checkout already includes it.

Money that flows to others (not platform revenue)

- Where a Debate has entry fees and/or a prize pool, the underlying entry amounts and prizes are disbursed to the applicable sponsor and/or winner under the published Debate rules; CoolPeople's share of those flows is limited to the flat fee and per-transaction markup above.
- Winner cash-outs, where offered, require identity, tax, and payout-onboarding steps before disbursement (Section 7).

General payment terms

- By transacting, you also agree to the payment processor's terms. We do not store full card numbers.
- You authorize us and our processor to charge the applicable amount shown at the point of sale, inclusive of the platform fee/markup disclosed there.
- Except where required by law or expressly stated, platform fees, tips, and markups are **non-refundable**. Refund and dispute handling is as described at purchase.
- You are responsible for your own taxes. Where required, we may collect tax information and issue tax forms (e.g., 1099 / 1042-S) for payouts and report as required.

9. Your Content & License

- You retain ownership of Content you submit. You grant CoolPeople a worldwide, non-exclusive, royalty-free, sublicensable license to host, store, reproduce, adapt, publish, transmit, display, and distribute that Content for the purpose of operating, promoting, and improving the Service, including any livestreaming, recording, replay, and moderation activities you have consented to.
- You represent that you own or have the rights to your Content and that it does not infringe or violate any third-party right or any law.

- Where you participate in a livestreamed Debate, you acknowledge separate consent to hosting/replay, any recording retention, and (where applicable) group-stream and minor-participation terms presented to you.

10. Prohibited Conduct

You agree not to: violate any law or third-party right; submit false attestations or impersonate any person, candidate, or committee; engage in fraud, vote manipulation, or coordinated inauthentic behavior; solicit or route prohibited political contributions; upload unlawful, infringing, harassing, or sexually exploitative content; upload child sexual abuse material (which we report as required by law); scrape, reverse engineer, or overload the Service; circumvent moderation, rate limits, age gates, or security; or sell, transfer, or misuse another user's data.

11. Moderation, Strikes, Suspension & Termination

- We may review, label, restrict, remove, or refuse Content, and may issue strikes, rate-limit, suspend, or terminate accounts, with or without notice, for any violation of these Terms or applicable law, or to protect users or the Service.
- We operate reporting, appeals, and review processes that you may use; decisions are made under our published standards.
- You may stop using and may request deletion of your account at any time, subject to legal retention obligations described in the Privacy Policy.

12. Intellectual Property & DMCA

The Service, excluding user Content, is owned by CoolPeople and its licensors and is protected by intellectual-property laws. We respond to valid notices of claimed copyright infringement and may remove allegedly infringing material and terminate repeat infringers. Send notices and counter-notice to [\[dmca@coolpeople.example\]](mailto:dmca@coolpeople.example).

13. Disclaimers

THE SERVICE AND ALL INFORMATION ON IT ARE PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, AND ANY WARRANTY THAT INFORMATION (INCLUDING OFFICE, DEADLINE, ELIGIBILITY, AND ELECTION-RULE DATA) IS ACCURATE, COMPLETE, OR CURRENT. **CoolPeople does not provide legal, compliance, tax, financial, or campaign advice.** Your use of the Service and reliance on any information is at your own risk.

14. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, COOLPEOPLE AND ITS AFFILIATES, OFFICERS, AND AGENTS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, DATA, OR GOODWILL, ARISING FROM OR RELATED TO THE SERVICE. OUR TOTAL LIABILITY FOR ALL CLAIMS WILL NOT EXCEED THE GREATER OF [amount, e.g., \$100] OR THE AMOUNTS YOU PAID US IN THE [12] MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM. Some jurisdictions do not allow certain limitations, so some of the above may not apply to you.

15. Indemnification

You agree to indemnify and hold harmless CoolPeople from claims, losses, and expenses (including reasonable legal fees) arising out of your Content, your use of the Service, your campaign or candidacy activity, your violation of these Terms, or your violation of any law or third-party right.

16. Dispute Resolution & Governing Law

These Terms are governed by the laws of [State/Country], without regard to conflict-of-laws rules. [Insert agreed dispute-resolution mechanism — e.g., binding arbitration, class-action waiver, and venue — subject to attorney review and applicable consumer-protection limits.]

17. Changes to These Terms

We may update these Terms. Material changes will be indicated by an updated version and effective date and, where appropriate, additional notice. Continued use after changes take effect constitutes acceptance. Prior versions are retained for recordkeeping.

18. Miscellaneous

These Terms, together with the Privacy Policy and any feature-specific terms, are the entire agreement between you and CoolPeople. If any provision is unenforceable, the rest remains in effect. Our failure to enforce a provision is not a waiver. You may not assign these Terms; we may assign them in connection with a merger, acquisition, or sale of assets.

19. Contact

Questions about these Terms: [legal@coolpeople.example] • [mailing address].

Acknowledgment & Electronic Acceptance

By selecting “I Agree” (or equivalent) and using the Service, I confirm that I have read and accept these Terms of Service and the Privacy Policy; that I am at least 18 (or a permitted minor with verified parental/guardian consent); and that any attestations I submit are true. I understand my acceptance is recorded electronically with date, time, version, and technical metadata, and serves as my signature.

Printed name (for offline/wet-ink use, if applicable)

Signature & date

Electronic acceptance recorded by the platform: user ID, terms version, timestamp, IP address, and user-agent.